Sanjay Gupta & Ors vs Harish Kumar Kathuria & Ors on 24 November, 2023

Author: Sachin Datta

Bench: Sachin Datta

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CS(OS) 296/2021, IA Nos. 10421/2023, 14
SANJAY GUPTA & ORS.
Through:

versus
HARISH KUMAR KATHURIA & ORS.
Through: Mr. Akshay Makhij
alongwith Mr. V
Mr. Rohinni Pat
Respondent/cont
in person.
CORAM:
HON'BLE MR. JUSTICE SACHIN DATTA
ORDER

% 24.11.2023 CCP (O) 66/2023 (on behalf of the petitioners under Section 12 and 14 of the Contempt of Courts Act, 1971, seeking initiation of the contempt proceedings against the Contemnors namelv Harish Kumar Kathuria and Sumit Kathuria for violating the order dated 08.07.2021)

1. The present contempt petition under Sections 12 and 14 of the Contempt of Courts Act, 1971 has been filed on behalf of the petitioners seeking initiation of contempt proceedings against defendant no.1 in the suit (respondent/contemnor no.1 in the contempt petition) and one Mr. Sumit Kathuria, who is the son of the defendant no.1 and has been impleaded as respondent/contemnor no.2 in the present contempt petition. It is averred in the contempt petition that Mr. Sumit Kathuria, although not a party to the suit bearing CS(OS) 296/2021, was well aware of the proceedings in the suit. The said two respondents/contemnors are stated to have violated the order dated 08.07.2021 passed by this court, wherein this court had directed This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/11/2023 at 02:15:31 the parties to maintain status quo with respect to the possession, title and construction in the property bearing no. 117, Hargobind Enclave, Delhi- 110092, admeasuring 300 square yards, comprising of Basement, Ground Floor, First Floor, Second Floor, and Third Floor with roof rights ("suit property"). This Court vide order dated 08.07.2021 had inter alia directed the following with respect to the suit property:

> "14. In view thereof, till the next date of hearing, it is directed that status quo, regarding possession, title and construction in the suit property shall be maintained."

2. It is submitted on behalf of the petitioners that disputes had arisen with respect to an Agreement to Sell dated 08.08.2017 executed between the parties for the sale of the suit property by the defendants to the plaintiffs. After the execution of the said Agreement to Sell dated 08.08.2017, on 13.04.2019, the possession of the basement of the suit property was handed over by the respondents/contemnors to the petitioner no.1 by handing over the keys of the basement of the suit property. It is further submitted that respondents/contemnors removed their sign board and belongings and allowed the petitioner No.1 to place his own locks at the basement shutter, thereby granting exclusive possession of the basement of the suit property to the petitioners. Further, a possession letter dated 13.04.2019 is also stated to have been executed by the respondent/contemnor no.1 and the petitioner no.1, wherein the respondent/contemnor no.2 affixed his signatures as a witness and handed over the possession of the basement to the petitioner.

3. The allegations against the respondents/contemnors are that during the pendency of the present civil suit and during the operation of the status quo order, as directed vide order dated 08.07.2021 passed by this court, the This is a digitally signed order.

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4. Pursuant to the said FIR, the respondents/contemnors were arrested on 11.05.2023 and were produced before the Ld. ACMM, Shahadra District, Karkardooma Court, wherein, the I.O. submitted his status report, which inter alia stated that one brass article and one chair belonging to the petitioner was recovered from the possession of respondent/contemnor no.2.

5. A settlement dated 12.05.2023 was entered into between the petitioner no.1 and the respondents/contemnors before the Ld. ACMM, Shahdara, Karkardooma Courts, based on which the respondents/contemnors were granted interim bail. It is submitted that one of the conditions in the said settlement was that both the respondents/contemnors shall hand over the peaceful possession of the basement to the petitioner no.1 and not interfere with the possession thereof in any manner.

6. It is submitted on behalf of the petitioners that the settlement dated 12.05.2023 entered before the Ld. ACMM was violated by the respondents/contemnors and that the respondents/contemnors again trespassed into the basement portion of the suit property, for which another This is a digitally

signed order.

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7. An application seeking cancellation of bail of the respondents/contemnors before the Ld. ACMM was thereafter preferred by the petitioner no.1 on the grounds that the respondents/contemnors had breached the terms of settlement dated 12.05.2023, which was a condition to the bail granted to the respondents/contemnors.

8. During the pendency of the said application of the petitioner no.1 seeking cancellation of bail, the respondents/contemnors preferred an application seeking modification of the order dated 12.05.2023 before the Ld. ASJ (Vacation Judge) wherein the Ld. ASJ (Vacation Judge) vide order dated 14.06.2023 modified the order dated 12.05.2023 to the extent of directing that the settlement dated 12.05.2023 shall not form part of the bail order dated 12.05.2023 and shall not be considered as a condition of bail.

9. The petitioner no.1 preferred a petition under Section 482 of Cr.P.C. bearing CRL MC No. 4469/2023, challenging the order dated 14.06.2023 passed by the Ld. ASJ, whereby this court vide order dated 05.07.2023 stayed the order dated 14.06.2023 to the extent that it had removed the settlement from being a part/condition of the bail granted by the Ld. ACMM on 12.05.2023.

10. Pursuant to the order dated 05.07.2023 passed by this court in CRL MC No. 4469/2023, the Ld. ACMM passed a detailed order dated 08.07.2023 and cancelled the bail granted to the respondents/contemnors and also issued non-bailable warrants against the respondents/contemnors.

11. It is submitted on behalf of the petitioners that the respondents/contemnors thereafter preferred an application seeking stay of This is a digitally signed order.

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12. It is averred in the present petition that the respondents/contemnors are habitual offenders and adopt the same modus operandi whereby they cheat innocent buyers and ultimately try to get into settlement with the buyers to evade criminal action. A copy of the orders and proceedings pending against the contemnors, which according to the petitioner establish similar misconduct on part of

the respondents/contemnors before various courts, including this court, have been annexed with the present contempt petition as Document A-12 (colly).

13. The allegations against the respondents/contemnors are that they have wilfully and explicitly acted in wilful disobedience of the orders passed by this court and also the settlement order passed by the Ld. ACMM.

14. The respondents/contemnors have refuted the allegations made against them by the petitioners and have filed a reply to the present petition, wherein they have, inter alia, stated that the respondents/contemnors are the absolute owners and in possession of the suit property. It is submitted on behalf of the respondents/contemnors that the possession of the basement of the suit property was never handed over to the petitioner, and the execution of the possession letter dated 13.04.2019 amounted to only handing over of This is a digitally signed order.

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15. It is submitted on behalf of the respondents/contemnors that the suit property had been mortgaged with HUDCO (respondent no.7) since the year 2005, which was in the knowledge of the petitioner no.1 and the same has been recorded in Clause 10(A) of the agreement to sell dated 08.08.2017. It is further submitted that the title documents of the suit property were with HUDCO. It is further submitted that due to the breach of the said agreement to sell by the petitioner no.1, the dues of HUDCO were only repaid in 2022 by the respondents/contemnors and therefore, no physical possession could have been handed over to the petitioner.

16. It is submitted on behalf of the respondents/contemnors that the interim order dated 08.07.2021 passed by this court does not clarify the position with respect to the possession of different portions of the suit property. It is further submitted that on a holistic reading of the said order, the petitioner can at best claim to be in possession of the first floor of the suit property.

17. It is submitted on behalf of respondents/contemnors that on 12.04.2023, the petitioner no.1 broke open the locks and trespassed into the basement and the first floor of the suit property and attempted to raise construction in blatant violation of the status quo order passed by this court. It is further submitted that the complaint dated 15.04.2023 of the petitioner was a cross complaint against the complaint dated 14.04.2023 of the respondents.

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18. It is submitted that the respondents/contemnors always had access to the basement and there was no reason for them to break down the walls of the ground floor to access the basement area. It is further submitted that the back entry to the basement always existed and that even today the keys to the back entry are with the respondents/contemnors and the articles and furniture belonging to the respondents/contemnors is lying in the basement of the suit property.

19. It is submitted on behalf of the respondents/contemnors with respect to the breach of the settlement dated 12.05.2023 that the same was neither voluntary nor wilfully entered. It is further submitted that the said settlement was a product of undue pressure, coercion and was involuntary, as the same had been arrived at while the respondents/contemnors were produced from police custody.

Analysis and Conclusion

20. Having perused the record and having considered the submissions of the respective counsel, I am of the view that the petitioner have been able to establish that the respondents are guilty of wilfully disobeying the order dated 08.07.2021 passed by this Court in CS (OS) No. 296/2021. The reasons for the same are enumerated hereinbelow.

21. Admittedly, the order dated 08.07.2021 mandates that the status quo would be maintained in respect of the suit property. There is no controversy that the said order has been extended from time to time and has been in operation throughout the pendency of the present suit.

22. Admittedly also, the possession letter dated 13.04.2019 has been executed in favour of the petitioner no.1 in which it has been expressly stated as under:

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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 29/11/2023 at 02:15:32 "I, Shri HARISH KUMAR alias HARISH KUMAR KATHURIA Son of Shri Guru DuttKathuria Resident of 117, Hargobind Enclave, Delhi-110092 (Pan No. ADTPK4638E) (Aadhaar No. 481032410232), (Indian Nationals), do hereby confirm to have delivered the vacant and on the spot possession of ENTIRE BASEMENT FLOOR, Without Roof rights (i.e. Upto Ceiling Level), alongwith its whole of structure constructed therein according to site, with the rights to install TV Antenna and overhead water tank on the roof of top floor, with all fittings, fixtures, connections structure standing thereon, with all other common facilities/amenities provided in the said building alongwith proportionate share in the land underneath, in the built-up Freehold Residential Property Bearing No. 117, Measuring Area 300 Sq. Yds. i.e. 250.83 Sq. Mtrs. Situated in the Layout Plan of The Hargobind Co-operative House Building Society Ltd. Colony Known as HARGOBIND ENCLAVE, Delhi- 110092 to Shri SANJAY GUPTA (Pan No. AAHPG5650M) (Aadhaar No. 658555493515) S/o Late Shri Girdhari Lal Gupta Resident of B-110,

> Preet Vihar, Delhi- 110092 on dated 12.04.2019.
>
> I/EXECUTANT further declare that I have taken the entire consideration amount in full and final settlement of amount/accounts, from the above purchaser and he is become the absolute owner of the said Basement Floor and now he is free to use the said Basement Floor in any manner whatsoever he likes."

23. The said possession letter contains the signature of Harish Kumar Kathuria (respondent/contemnor no.1 in the contempt petition) as the party handing over possession and also contains the signature of Mr. Sumit Kathuria (respondent/contemnor no.2 in the contempt petition) as witness.

24. It is not the case of either of the respondents/contemnors that the said possession letter was not duly executed by them in favour of the petitioner no.1 even though the factum of the basement being in possession of the petitioner no.1 was sought to be controverted by the defendants/contemnors in their reply to the present contempt petition.

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25. The petitioners have annexed alongwith the present contempt petition photographs and videos stated to have been taken at the time of the execution of the possession letter dated 13.04.2019 establishing the handing over of vacant possession of the basement of the suit property to the petitioner no.1

26. Further, FIR No. 151/2023 dated 11.05.2023, PS Anand Vihar was also registered on the account of actions of the respondents/contemnors in seeking to disturb the possession of the petitioners in respect of the basement of the suit property. The following has been specifically mentioned in the said FIR:

> "5. That the accused persons criminally break wall and constructed iron Gate and iron stairs towards the basement and entered into basement recently in April for which I have lodged police complaint on 15.4.23 and the matter is being investigated and Investigating officer from your esteemed police station during investigation in that complaint also witnessed my staff open locks to enter basement establishing my absolute possession in the basement on 9.5.2023. That in the said complaint dated 15.4 2023, it was alleged that the Accused persons Harish and Sumit broke walls on the ground floor and stole my expensive articles. That the accused persons by installing iron gate and staircase were preparing to criminally trespass and unlawfully take over possession of the property. That by that time, possession of the basement portion was not taken over by the accused."....

.....

"7. That even after accepting substantial sale consideration amount for the sale of the property being 117, Hargobind Enclave, Delhi and after handing over the vacant and physical possession of the Basement portion in the said property in my favour by his own free will, the Accused, Harish Kathuria alongwith his son, Accused Sumit Kathuria, Criminally Trespassed into the Basement portion of the property 117, Hargobind Enclave, Delhi, to unlawfully take over its possession, which was in my possession and protected by status quo orders, in the late hours on 09.05.2023 till about noon on 10.05.2023 by entering from the backside door and also affixed their own locks from the inside thereby denying me the access and possession of the This is a digitally signed order.

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27. The said FIR also records as under :-

"11. That Mr. Sareen and Mr. Jain and my brother Vinay Gupta in whose presence and under videography and photography the possession of basement portion was handed over to me by the Accused persons have also given written statements affirming the fact that the possession of basement portion was given to me by the accused persons. They have identified themselves in photos and videos. That there is a status quo order also in my favour and my possession could not be taken over in this criminal manner by the accused persons. That there are other unknown persons assisting the accused persons whose details can be discovered by detailed investigation".

28. It was in the backdrop of the aforesaid allegations as recorded in the FIR No. 151/2023 that the order dated 12.05.2023 came to be passed by the Court of learned ACMM, Shahdara District, Karkardooma Courts, Delhi, wherein it has been inter alia recorded as under:

"During the course of arguments, it is stated that both the parties are ready to amicably resolved the dispute between them. Further both the parties in the court itself entered into settlement which is now Ex. X-

1."

29. As recorded in the order dated 12.05.2023, a settlement was arrived at between the parties, whereby the parties gave a joint statement, wherein it was specifically stated as under:

"Joint statement of complainant Sanjay Gupta s/o Sh. GL Puta, Rio A- 71, Nirman Vihar, Delhi-92.

and (1) Accused Harish Kumar Kathuriya s/o Late Sh. Gurudatt Kathuriaya and (2) accused Sumit Kathuriya s/o Sh. Harish Kumar Kathuriya both residing at 117, Hargovind Enclave, Delhi.

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And signatory to the agreement dated 08.08.2017 namely Sh. Suresh Kathuria(real brother of accused Harish Kumar Kathuria) s/o Late Sh. Gurudatt Kathuriya, R/o H-88, · Sector-9, Noida, UP.

On SA We, complainant, accused and signatory to the agreement dated 08.08.2017 have amicably settled the present matter among us on the following terms and conditions:-

(1) That the parties name above have agreed to resolve all their disputes civil as well as criminal pending between them qua property bearing no. 117, Hargovind Enclave, Delhi by virtue of present settlement.

(2) It is agreed between the parties that on further payment of Rs.

3.5 crore by complainant Sh. Sanjay Gupta (or by his nominees) to Sh. Harish Kumar Kathuria and further Rs. 53,000/- to Suresh Kathuria, both Sh. Harish Kumar Kathuria and Suresh Kathuria shall transfer all their rights in the property bearing no. 117, Hargovind Enclave, Delhi by executing registered sale deed/relevant sale documents with a period of two weeks from today. The payment shall be handed over at the time of execution of sale deed by way of demand draft in favour of respective persons as detailed above. The parties will cooperate in getting permission from Hon'ble High Court of Delhi in pending civil suit to execute the transfer documents. The parties will cooperate with each other so that the property documents which are presently with Hon'ble DRT/HUDCO shall be deposited before Hon'ble High Court of Delhi to be released in favour of the complainant after execution of the sale deed. The accused persons confirmed that all dues and obligations of HUDCO have been paid by them.

(3) That Sh. Harish Kumar Kathuriya and Sumit Kathuriya have handed over the possession of the basement of property bearing no. 117, Hargovind Enclave, Delhi today through their relative by removing their locks.

(4) That the complainant has got registered two FIRs i.e. FIR No. 197/2020 at EOW and the present FIR i.e. FIR No. 151/2023, PS Anand Vihar. It is agreed that parties shall file the quashing petition before the Hon'ble High Court of Delhi for the quashing of above- mentioned FIRs.

(5) It is further agreed that in case of non-cooperation of the complainant in quashing the FIRs shall render the sale deed executed as per the terms of the settlement as null and void.

(6) It is further agreed between the parties that the complainant This is a digitally signed order.

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(7) Violation of any terms or conditions agreed between the parties herein shall amount to contempt of court."

30. The aforesaid settlement was occasioned in the backdrop of the allegation made by the petitioner no.1 regarding the disruption of the status quo by the respondents/contemnors as mandated vide order dated 08.07.2021 passed by this Court.

31. It is not the case of the respondents/contemnors that the petitioner/plaintiff no.1 had no access to the basement of the property during the pendency of the suit and the aftermath of the interim order dated 18.07.2021. The controversy evidently arose only when the respondents/contemnors sought to disturb the status quo in the manner set out in FIR No. 151/2023. It was infraction of the said status quo which impelled the petitioners to file a complaint leading up to FIR No. 151/2023 which finally culminated in settlement dated 12.05.2021 as recorded in the order dated 12.05.2023 passed by the learned ACMM, Shahdara District, Karkardooma Courts, Delhi.

32. Thus, the events that transpired, and in particular, the background in which the settlement (as recorded in the aforesaid order dated 12.05.2023 passed by the learned ACMM, Shahdara District, Karkardooma Courts, Delhi) came to be executed clearly brings out that the respondents/contemnors committed infraction/violation of the status quo order dated 08.07.2021 passed in CS (OS) 296/2021. Owing to the said infraction, the FIR No. 151/2023 came to be registered pursuant to which a settlement agreement came to be executed wherein respondents/contemnors This is a digitally signed order.

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33. In this regard, a complaint dated 02.06.2023 was submitted by the petitioner to the SHO PS Anand Vihar, inter alia stating as under:

> "That on 12.05.2023, while the accused persons were brought before the court of Ld. MM, Ld. Sh. Anubhav Jain, after P.C. and their bail application was being heard, the accused persons entered into a settlement with me and give a statement in the court before the Ld. M.M. that the possession of basement have been handed over me through their relative (daughter) who was present in court by removing locks. I also got right to close the door in the basement at the back side leading to ground floor.
>
> My few wooden articles i.e. Table, Office Chair, wooden racks and other fixtures were still in the basement portion Today, when my brother in law visited the basement portion at 117, Hargovind Enclave, Delhi to get the back side of the door closed as agreed before court, he found that the basement portion has again been illegally trespassed by the accused persons as the basement portion was found locked from inside. There is no passage to access the basement except for back side portion and front portion and in both portions as per the statement made by the accused persons on 12.5.2023, I have exclusive access. When I reached the spot, I again found that lock have been put from inside by accused persons by illegally entering from the back side gate of property which otherwise was to be closed."

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34. The petitioner no.1 thereafter proceeded to file an application under Section 437 (5) of the Code of Criminal Procedure, for cancellation of bail granted to the accused persons/contemnors by the learned ACMM, Shahdara District, Karkardooma Courts, Delhi vide the aforesaid order dated 12.05.2023.During the course of the said proceedings, a status report was filed by the Investigating Officer which specifically recorded that"one brass article and one chair" which belonged to the petitioner, and which were in the basement of the suit property were recovered from the house of the respondents/contemnors.

35. This again corroborates the factum of the respondents/contemnors having violated the status quo order dated 08.07.2021 passed by this Court. It is also relevant to note that the stand of the respondents/contemnors to the effect that they are in possession of the basement of the suit property is also in utter contradiction/contravention of the settlement dated 12.05.2023 which has been reproduced above.

36. Thus, the respondents/contemnors have not only acted in contravention of the order 08.07.2021 passed by this Court but are also in admitted breach of the settlement as recorded in the order dated 12.05.2023 passed by the learned ACMM, Shahdara District, Karkardooma Courts, Delhi.

37. There is no controversy that the aforesaid settlement was arrived at between the parties, and it was on that basis that the respondents/contemnors were granted bail pursuant to FIR No. 151/2023. Yet, admittedly, the terms thereof have not been adhered to by the

respondents/contemnors. It is thus evident that the respondents/contemnors have scant regard for orders passed by this Court. They also have scant This is a digitally signed order.

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38. It has been brought out by the petitioner that the respondents/contemnors are habitual offenders and there are several other cases of fraud, misdemeanours and allegations of contempt against the respondents/contemnors in several other proceedings as well. The conduct of the respondents/contemnors is egregious and is of a nature which tends to substantially interfere with the due course of justice.

39. In view of the above, this Court holds that respondents/contemnors are guilty of violating the directions contained in order dated 08.07.2021.They are accordingly held guilty of committing Contempt of Court under Sections 2 (b), read with Sections 10 and 12 of the Contempt of Courts Act, 1971.

40. At this stage, it has been put to the respondents/contemnors as to whether they are willing to purge their contempt by handing over the possession of the basement of the suit property to the plaintiffs.

41. Learned senior counsel for the respondents/contemnors seeks some time to take instructions.

42. List on 05.12.2023.

SACHIN DATTA, J NOVEMBER 24, 2023/dk This is a digitally signed order.

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